

MACAULAY
ON
JEWISH DISABILITIES

EDITED BY

I. ABRAHAMS

AND

S. LEVY

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SPEECH ON JEWISH DISABILITIES *****



ESSAY AND SPEECH
ON
JEWISH DISABILITIES

BY
LORD MACAULAY

EDITED, WITH AN INTRODUCTION AND NOTES, BY
ISRAEL ABRAHAM, M.A.
AND THE
REV. S. LEVY, M.A.

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NOTE

The authors and editors of all volumes published by the Jewish Historical Society of England accept full and sole responsibility for the views expressed by them.

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PORTRAIT OF MACAULAY

[*Frontispiece*](#)

The frontispiece is a reduced photograph of the portrait by Sir Francis Grant, P.R.A. The original is in the National Portrait Gallery, London (No. 453).

MACAULAY'S AUTOGRAPH

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A facsimile reproduction of Macaulay's signature at the end of a letter to Macvey Napier, Editor of the *Edinburgh Review*, dated 10th Feb. 1839. The original is in the British Museum (Add. MS. 34,620 f. 83 b).

INTRODUCTION

THE first edition of this reprint of Macaulay's famous essay and speech on the removal of Jewish disabilities was timed for publication on December 28, 1909, the fiftieth anniversary of their author's death. It was intended to serve a double object. In the first place, it was a tribute to the memory of Macaulay in grateful recognition of his strenuous advocacy of the cause of Jewish emancipation; and in the second place, it was designed to be a further memento of the celebration organised by the Jewish Historical Society of England in 1908, on the occasion of the jubilee of the admission of Jews into Parliament.

Neither the essay nor the speech was Macaulay's first contribution to the cause of Jewish emancipation. Thomas Babington (afterwards Lord) Macaulay (1800-1859) entered the House of Commons at the General Election of 1830. On April 5, in that same year, Mr. (afterwards Sir) Robert Grant moved to bring in a Bill to remove Jewish political disabilities. The motion was opposed by Sir Robert Inglis. When Inglis resumed his seat, "Sir James Mackintosh and Mr. Macaulay," as Hansard reports, "rose together, but the latter, being a new Member, was called for by the House." Thus, Macaulay's maiden speech was delivered in behalf of the Jewish cause. It made considerable stir. Sir James Mackintosh took part in the debate later, and after complimenting the young orator, said: "I do not rise, therefore, to supply any defects in that address, for indeed there were none that I could find; but it is principally to absolve my own conscience that I offer myself to the attention of the House."

Writing to Mr. (afterwards Sir) Isaac Lyon Goldsmid on April 13, 1830, Lord Holland suggested "that it might promote your cause to print a correct copy of the late triumphant debate in the Commons in the shape of a pamphlet during holidays. If Mr. Grant, Sir James Mackintosh, Mr. Macaulay, and Dr. Lushington could be prevailed upon to correct their speeches for that publication, it would be a valuable manual for all those who in or out of Parliament are disposed to urge the facts and reasons in your favour" (*Transactions of the Jewish Historical Society of England*, iv.

158). This advice does not seem to have been followed, nor did Macaulay himself reprint this particular speech, but it was included in Vizetelly's two volumes of Macaulay's Speeches, published in 1853, much to their author's indignation. The speech occupies the first place in Vol. I. In the second volume of Vizetelly's edition is another speech by Macaulay, delivered in the House on March 31, 1841, on the Jews' Declaration Bill. Angered by Vizetelly's publication, Macaulay himself brought out an edition of his speeches. He included neither of the two speeches which appear in Vizetelly, but inserted the more powerful and effective speech delivered on April 17, 1833.

The production of the essay seems in the first instance to have been due to Macaulay's own initiative. For on April 29, 1830, a little over three weeks after the 1830 debate, he wrote to Macvey Napier, the editor of the *Edinburgh Review*: "If, as I rather fear, we should be beaten in Parliament this year about the Jews, a short pungent article on that question might be useful and taking. It ought to come within the compass of a single sheet" (*Selection from the Correspondence of the late Macvey Napier*, London, 1879, p. 80). In the course of the next few months Macaulay was strengthened in his conviction of the probable efficacy of an essay on the Jewish case by the representations which were made to him in the interval, apparently as an indirect result of Lord Holland's original suggestion for the reprint in pamphlet form of the debate in the House of Commons on April 5, 1830. Thus in another letter to Macvey Napier, dated October 16, 1830, he stated: "The Jews have been urging me to say something about their claims; and I really think that the question might be discussed, both on general and on particular grounds, in a very attractive manner. What do you think of this plan?" (*ibid.*, pp. 93, 94). On November 27, 1830, he wrote again: "I have only a minute to write. I will send you an article on the Jews next week" (*ibid.*, p. 97). And finally on December 17, 1830, Macaulay sent the article as promised. "I send you an article on the Jews.... I am very busy, or I should have sent you this Jew article before. It is short, and carelessly written, perhaps, as to style, but certainly as to penmanship" (*ibid.*, p. 98). The essay appeared in the *Edinburgh Review* in the following month, January 1831, and thus stands in date between the maiden speech of 1830 and the speech of 1833. In the latter year the House of Commons passed Mr. Grant's Bill through all its stages, though it was not till 1860 that the victory was formally won, after a practical triumph in 1858. It is curious to

note that, in the debate of 1830, Mr. Grant appealed to the Commons to concede justice to the Jews promptly, and not let the matter hang in the balance for thirty years, as had been done with Catholic Emancipation. The very interval feared by Mr. Grant separated his original motion from its final ratification. Macaulay's essay played a great part in converting English public opinion. So popular had this essay become, so convincing its plea, that it was regarded as the main statement of the Jewish case. Edition after edition of the volume containing the essay was called for and exhausted. So late as September 1847, when the Tory organ, the *Quarterly Review*, futilely attempted to set up a reasonable case against the Jewish claim, the whole of the argument was directed towards rebutting Macaulay's essay.

The present edition is a verbal reprint of Macaulay's own revision. In the notes attention is drawn to some of the modifications which the author introduced, but a few words may here be said on one or two points in which Macaulay's revision is particularly interesting. Thus, in the speech as reported in Hansard (3rd Series, Vol. XVII., col. 232), there occurs this passage, deleted in the revision:—

“No charge could be brought against the Jews of evincing any disposition to attack the Christian religion, or to offend its professors. It was true that one imputation of such a nature had lately been thrown out in that House, but it was entirely unfounded. *He had seen a great deal of the worship of the Jews*, and he had heard a great deal on the subject from others, and *from all that he had seen* and all that he had heard, he was able to say, without the slightest fear of contradiction, that there was no part of the Jewish worship which was not only not insulting to Christians, but in which Christians might not, without the least difficulty, join.”

The imputation had been made in the House by William Cobbett, on March 1, 1833. The most noteworthy point is, however, the sentences which have been italicised. They give direct evidence that Macaulay must often have visited the synagogue services.

In the revision of the essay, Macaulay, by omitting a couple of sentences, laid himself open to a charge of formal fallacy. Professor F. C. Montague (in his edition of the Essays, Vol. I. p. 289) writes: “When Macaulay asserts the identity of the two propositions—It is right that some person or persons should possess political power, and, Some person or persons must have a right to political power—he commits an obvious fallacy.” But in the *Edinburgh Review* Macaulay continued: “It will hardly be denied that government is a means for the attainment of an end. If men have a right to

the end, they have a right to this—that the means shall be such as will accomplish the end.” There is thus no fallacy in the argument as Macaulay intended it to be understood. It is equally difficult to admit the validity of Professor Montague’s further comment: “Neither is it true in all cases, and without any qualification, that differences of religion are absolutely irrelevant to the bestowal of political power. In some cases the differences of thought and feeling between the adherents of different creeds are so many and so considerable that harmonious co-operation in the same body politic becomes almost inconceivable. Whilst Mohammedanism and Hinduism remain what they are, it is scarcely conceivable that Mohammedans and Hindus could really blend in one constituent body for the choice of a parliament which should govern India.” It remains to be proved by experience whether the results of Lord Morley’s constitutional reforms will not belie this fear, and whether the joint admission of various sects to political responsibility will not, in the end, mitigate sectarian animosities, under the impulse of a common striving for the common good. And Macaulay’s point is missed by Professor Montague. Religion *as such* must not be made a bar to admission to political rights. Macaulay did not argue that power should be placed in the hands of those unfit to use it for the general good. But assuming the fitness proved, their religion must not be a ground for exclusion. Every one admitted that the fitness had been proved in the case of the Jews. Inglis, who preceded Macaulay, and, of course, on the opposite side, said in the 1833 debate: “He believed that there was no portion of the community that furnished a smaller relative proportion of criminals, or that were better conducted, than the Jews were.” Another opponent of the Bill, Mr. Halcomb, said: “He admitted that the Jews were a body against whose moral character nothing could be adduced; that they were good and loyal citizens of the king.” Mr. William Roche (a Catholic supporter of the Bill) might well comment on all this: “If, Sir, the Jews have proved themselves good subjects in this country, and in all other countries where they have been domesticated and admitted to political freedom, that is all we have a right to look to, leaving to them, as to every other sect, perfect liberty of conscience in their spiritual concerns.” Of course Professor Montague does not dispute the validity of Macaulay’s plea as applied to *the Jews*. He describes the success of the arguments in the essay as complete, and their justice as generally admitted.

J. Cotter Morison, in his life of Macaulay in the “English Men of Letters” series, advanced the view “that Macaulay’s natural aptitude was rather oratorical than literary.... It is no exaggeration to say that as an orator he moves in a higher intellectual plane than he does as a writer.... In his speeches we find him nearly without exception laying down broad luminous principles, based upon reason, and those boundless stores of historical illustration, from which he argues with equal brevity and force. It is interesting to compare his treatment of the same subject in an essay and a speech. His speech on the Maynooth grant and his essay on Mr. Gladstone’s *Church and State* deal with practically the same question, and few persons would hesitate to give the preference to the speech” (pp. 131, 132). Jewish disabilities is another subject which occasioned both an essay and a speech from Macaulay. Here, too, the speech, by comparison, must be judged to be more effective than the essay. Certainly there is no passage in the essay which equals in dignity and strength and eloquence the following sentences in the speech:—

“Nobody knows better than my honourable friend the Member for the University of Oxford that there is nothing in their national character which unfits them for the highest duties of citizens. He knows that, in the infancy of civilisation, when our island was as savage as New Guinea, when letters and arts were still unknown to Athens, when scarcely a thatched hut stood on what was afterwards the site of Rome, this contemned people had their fenced cities and cedar palaces, their splendid Temple, their fleets of merchant ships, their schools of sacred learning, their great statesmen and soldiers, their natural philosophers, their historians and their poets. What nation ever contended more manfully against overwhelming odds for its independence and religion? What nation ever, in its last agonies, gave such signal proofs of what may be accomplished by a brave despair? And if, in the course of many centuries, the oppressed descendants of warriors and sages have degenerated from the qualities of their fathers, if, while excluded from the blessings of law, and bowed down under the yoke of slavery, they have contracted some of the vices of outlaws and of slaves, shall we consider this as matter of reproach to them? Shall we not rather consider it as matter of shame and remorse to ourselves? Let us do justice to them. Let us open to them the door of the House of Commons. Let us open to them every career in which ability and energy can be displayed. Till we have done this, let us not presume to say that there is no genius among the countrymen of Isaiah, no heroism among the descendants of the Maccabees” (*Infra*, pp. 60, 61).

We may at this distance of time prefer the speech to the essay. Nevertheless, we cannot but be profoundly grateful for both, and are bound to recognise and appreciate the deep influence they both exercised in persuading public opinion to grant the Jews of England complete equality before the law with all other denominations. Macaulay was brought up in a

home which was the headquarters of the movement for the abolition of slavery. He carried the lessons of his youth into the work of his manhood. He championed the cause of the persecuted and the wronged in various human relations. But nothing that he did has raised a more enduring monument to his name than his enthusiastic and triumphant advocacy of the cause of Jewish freedom.

Civil Disabilities of the Jews

FROM

“THE EDINBURGH REVIEW,” *Jan. 1831*

*Statement of the Civil Disabilities and Privations
affecting Jews in England*

8vo. London: 1829^[1]

THE distinguished member of the House of Commons who, towards the close of the late Parliament, brought forward a proposition for the relief of the Jews, has given notice of his intention to renew it.^[2] The force of reason, in the last session, carried the measure through one stage, in spite of the opposition of power. Reason and power are now on the same side; and we have little doubt that they will conjointly achieve a decisive victory.^[3] In order to contribute our share to the success of just principles, we propose to pass in review, as rapidly as possible, some of the arguments, or phrases claiming to be arguments, which have been employed to vindicate a system full of absurdity and injustice.

The constitution, it is said, is essentially Christian; and therefore to admit Jews to office is to destroy the constitution. Nor is the Jew injured by being excluded from political power. For no man has any right to power. A man has a right to his property; a man has a right to be protected from personal injury. These rights the law allows to the Jew; and with these rights it would be atrocious to interfere. But it is a mere matter of favour to admit any man to political power; and no man can justly complain that he is shut out from it.

We cannot but admire the ingenuity of this contrivance for shifting the burden of the proof from those to whom it properly belongs, and who would, we suspect, find it rather cumbersome. Surely no Christian can deny that every human being has a right to be allowed every gratification which produces no harm to others, and to be spared every mortification which

produces no good to others. Is it not a source of mortification to a class of men that they are excluded from political power? If it be, they have, on Christian principles, a right to be freed from that mortification, unless it can be shown that their exclusion is necessary for the averting of some greater evil. The presumption is evidently in favour of toleration. It is for the prosecutor to make out his case.

The strange argument which we are considering would prove too much even for those who advance it. If no man has a right to political power, then neither Jew nor Gentile has such a right. The whole foundation of government is taken away. But if government be taken away, the property and the persons of men are insecure; and it is acknowledged that men have a right to their property and to personal security. If it be right that the property of men should be protected, and if this can only be done by means of government, then it must be right that government should exist. Now there cannot be government unless some person or persons possess political power. Therefore it is right that some person or persons should possess political power. That is to say, some person or persons must have a right to political power.^[4]

It is because men are not in the habit of considering what the end of government is, that Catholic disabilities and Jewish disabilities have been suffered to exist so long. We hear of essentially Protestant governments and essentially Christian governments, words which mean just as much as essentially Protestant cookery, or essentially Christian horsemanship. Government exists for the purpose of keeping the peace, for the purpose of compelling us to settle our disputes by arbitration instead of settling them by blows, for the purpose of compelling us to supply our wants by industry instead of supplying them by rapine. This is the only operation for which the machinery of government is peculiarly adapted, the only operation which wise governments ever propose to themselves as their chief object. If there is any class of people who are not interested, or who do not think themselves interested, in the security of property and the maintenance of order, that class ought to have no share of the powers which exist for the purpose of securing property and maintaining order. But why a man should be less fit to exercise those powers because he wears a beard, because he does not eat ham, because he goes to the synagogue on Saturdays instead of going to the church on Sundays, we cannot conceive.

The points of difference between Christianity and Judaism have very much to do with a man's fitness to be a bishop or a rabbi. But they have no more to do with his fitness to be a magistrate, a legislator, or a minister of finance, than with his fitness to be a cobbler. Nobody has ever thought of compelling cobblers to make any declaration on the true faith of a Christian. Any man would rather have his shoes mended by a heretical cobbler than by a person who had subscribed all the thirty-nine articles, but had never handled an awl. Men act thus, not because they are indifferent to religion, but because they do not see what religion has to do with the mending of their shoes. Yet religion has as much to do with the mending of shoes as with the budget and the army estimates. We have surely had several signal proofs within the last twenty years that a very good Christian may be a very bad Chancellor of the Exchequer.^[5]

But it would be monstrous, say the persecutors, that Jews should legislate for a Christian community. This is a palpable misrepresentation. What is proposed is, not that the Jews should legislate for a Christian community, but that a legislature composed of Christians and Jews should legislate for a community composed of Christians and Jews. On nine hundred and ninety-nine questions out of a thousand, on all questions of police, of finance, of civil and criminal law, of foreign policy, the Jew, as a Jew, has no interest hostile to that of the Christian, or even to that of the Churchman. On questions relating to the ecclesiastical establishment, the Jew and the Churchman may differ. But they cannot differ more widely than the Catholic and the Churchman, or the Independent and the Churchman. The principle that Churchmen ought to monopolise the whole power of the state would at least have an intelligible meaning. The principle that Christians ought to monopolise it has no meaning at all. For no question connected with the ecclesiastical institutions of the country can possibly come before Parliament, with respect to which there will not be as wide a difference between Christians as there can be between any Christian and any Jew.

In fact, the Jews are not now excluded from political power. They possess it; and as long as they are allowed to accumulate large fortunes, they must possess it. The distinction which is sometimes made between civil privileges and political power is a distinction without a difference. Privileges are power. Civil and political are synonymous words, the one derived from the Latin, the other from the Greek. Nor is this mere verbal

quibbling. If we look for a moment at the facts of the case, we shall see that the things are inseparable, or rather identical.

That a Jew should be a judge in a Christian country would be most shocking. But he may be a jurymen. He may try issues of fact; and no harm is done. But if he should be suffered to try issues of law, there is an end of the constitution. He may sit in a box plainly dressed, and return verdicts. But that he should sit on the bench in a black gown and white wig, and grant new trials, would be an abomination not to be thought of among baptized people. The distinction is certainly most philosophical.

What power in civilised society is so great as that of the creditor over the debtor? If we take this away from the Jew, we take away from him the security of his property. If we leave it to him, we leave to him a power more despotic by far than that of the king and all his cabinet.

It would be impious to let a Jew sit in Parliament. But a Jew may make money; and money may make Members of Parliament. Gatton and Old Sarum may be the property of a Hebrew. An elector of Penryn will take ten pounds from Shylock rather than nine pounds nineteen shillings and elevenpence three farthings from Antonio.^[6] To this no objection is made. That a Jew should possess the substance of legislative power, that he should command eight votes on every division as if he were the great Duke of Newcastle^[7] himself, is exactly as it should be. But that he should pass the bar and sit down on those mysterious cushions of green leather, that he should cry “hear” and “order,” and talk about being on his legs, and being, for one, free to say this and to say that, would be a profanation sufficient to bring ruin on the country.

That a Jew should be privy councillor to a Christian king would be an eternal disgrace to the nation. But the Jew may govern the money-market, and the money-market may govern the world. The minister may be in doubt as to his scheme of finance till he has been closeted with a Jew. A congress of sovereigns may be forced to summon the Jew to their assistance. The scrawl of the Jew on the back of a piece of paper may be worth more than the royal word of three kings, or the national faith of three new American republics. But that he should put Right Honourable before his name would be the most frightful of national calamities.

It was in this way that some of our politicians reasoned about the Irish Catholics. The Catholics ought to have no political power. The sun of England is set for ever if the Catholics exercise political power. Give the Catholics everything else; but keep political power from them. These wise men did not see that, when everything else had been given, political power had been given. They continued to repeat their cuckoo song, when it was no longer a question whether Catholics should have political power or not, when a Catholic Association bearded the Parliament, when a Catholic agitator exercised infinitely more authority than the Lord Lieutenant. ^[8]

If it is our duty as Christians to exclude the Jews from political power, it must be our duty to treat them as our ancestors treated them, to murder them, and banish them, and rob them. For in that way, and in that way alone, can we really deprive them of political power. If we do not adopt this course, we may take away the shadow, but we must leave them the substance. We may do enough to pain and irritate them; but we shall not do enough to secure ourselves from danger, if danger really exists. Where wealth is, there power must inevitably be.

The English Jews, we are told, are not Englishmen. They are a separate people, living locally in this island, but living morally and politically in communion with their brethren who are scattered over all the world. An English Jew looks on a Dutch or a Portuguese Jew as his countryman, and on an English Christian as a stranger. This want of patriotic feeling, it is said, renders a Jew unfit to exercise political functions.

The argument has in it something plausible; but a close examination shows it to be quite unsound. Even if the alleged facts are admitted, still the Jews are not the only people who have preferred their sect to their country. The feeling of patriotism, when society is in a healthful state, springs up by a natural and inevitable association, in the minds of citizens who know that they owe all their comforts and pleasures to the bond which unites them in one community. But, under a partial and oppressive government, these associations cannot acquire that strength which they have in a better state of things. Men are compelled to seek from their party that protection which they ought to receive from their country, and they, by a natural consequence, transfer to their party that affection which they would otherwise have felt for their country. The Huguenots of France called in the help of England against their Catholic kings. The Catholics of France called

in the help of Spain against a Huguenot king. Would it be fair to infer, that at present the French Protestants would wish to see their religion made dominant by the help of a Prussian or English army? Surely not. And why is it that they are not willing, as they formerly were willing, to sacrifice the interests of their country to the interests of their religious persuasion? The reason is obvious: they were persecuted then, and are not persecuted now. The English Puritans, under Charles the First, prevailed on the Scotch to invade England. Do the Protestant Dissenters of our time wish to see the Church put down by an invasion of foreign Calvinists? If not, to what cause are we to attribute the change? Surely to this, that the Protestant Dissenters are far better treated now than in the seventeenth century. Some of the most illustrious public men that England ever produced were inclined to take refuge from the tyranny of Laud in North America.^[9] Was this because Presbyterians and Independents are incapable of loving their country? But it is idle to multiply instances. Nothing is so offensive to a man who knows anything of history or of human nature as to hear those who exercise the powers of government accuse any sect of foreign attachments. If there be any proposition universally true in politics it is this, that foreign attachments are the fruit of domestic misrule. It has always been the trick of bigots to make their subjects miserable at home, and then to complain that they look for relief abroad; to divide society, and to wonder that it is not united; to govern as if a section of the state were the whole, and to censure the other sections of the state for their want of patriotic spirit. If the Jews have not felt towards England like children, it is because she has treated them like a stepmother. There is no feeling which more certainly develops itself in the minds of men living under tolerably good government than the feeling of patriotism. Since the beginning of the world, there never was any nation, or any large portion of any nation, not cruelly oppressed, which was wholly destitute of that feeling. To make it, therefore, ground of accusation against a class of men, that they are not patriotic, is the most vulgar legerdemain of sophistry. It is the logic which the wolf employs against the lamb. It is to accuse the mouth of the stream of poisoning the source.^[10]

If the English Jews really felt a deadly hatred to England, if the weekly prayer of their synagogues were that all the curses denounced by Ezekiel on Tyre and Egypt might fall on London, if, in their solemn feasts, they called down blessings on those who should dash their children to pieces on the

stones, still, we say, their hatred to their countrymen would not be more intense than that which sects of Christians have often borne to each other. But in fact the feeling of the Jews is not such. It is precisely what, in the situation in which they are placed, we should expect it to be. They are treated far better than the French Protestants were treated in the sixteenth and seventeenth centuries, or than our Puritans were treated in the time of Laud. They, therefore, have no rancour against the government or against their countrymen. It will not be denied that they are far better affected to the state than the followers of Coligni or Vane.^[11] But they are not so well treated as the dissenting sects of Christians are now treated in England; and on this account, and, we firmly believe, on this account alone, they have a more exclusive spirit. Till we have carried the experiment farther, we are not entitled to conclude that they cannot be made Englishmen altogether. The statesman who treats them as aliens, and then abuses them for not entertaining all the feelings of natives, is as unreasonable as the tyrant who punished their fathers for not making bricks without straw.

Rulers must not be suffered thus to absolve themselves of their solemn responsibility. It does not lie in their mouths to say that a sect is not patriotic. It is their business to make it patriotic. History and reason clearly indicate the means. The English Jews are, as far as we can see, precisely what our government has made them. They are precisely what any sect, what any class of men, treated as they have been treated, would have been. If all the red-haired people in Europe had, during centuries, been outraged and oppressed, banished from this place, imprisoned in that, deprived of their money, deprived of their teeth, convicted of the most improbable crimes on the feeblest evidence, dragged at horses' tails, hanged, tortured, burned alive; if, when manners became milder, they had still been subject to debasing restrictions and exposed to vulgar insults, locked up in particular streets in some countries, pelted and ducked by the rabble in others, excluded everywhere from magistracies and honours, what would be the patriotism of gentlemen with red hair? And if, under such circumstances, a proposition were made for admitting red-haired men to office, how striking a speech might an eloquent admirer of our old institutions deliver against so revolutionary a measure! "These men," he might say, "scarcely consider themselves as Englishmen. They think a red-haired Frenchman or a red-haired German more closely connected with them than a man with brown hair born in their own parish. If a foreign sovereign patronises red hair, they

love him better than their own native king. They are not Englishmen: they cannot be Englishmen: nature has forbidden it: experience proves it to be impossible. Right to political power they have none; for no man has a right to political power. Let them enjoy personal security; let their property be under the protection of the law. But if they ask for leave to exercise power over a community of which they are only half members, a community the constitution of which is essentially dark-haired, let us answer them in the words of our wise ancestors, *Nolumus leges Angliæ mutari.*”^[12]

But it is said, the Scriptures declare that the Jews are to be restored to their own country; and the whole nation looks forward to that restoration. They are, therefore, not so deeply interested as others in the prosperity of England. It is not their home, but merely the place of their sojourn, the house of their bondage. This argument, which first appeared in the *Times* newspaper,^[13] and which has attracted a degree of attention proportioned not so much to its own intrinsic force as to the general talent with which that journal is conducted, belongs to a class of sophisms by which the most hateful persecutions may easily be justified. To charge men with practical consequences which they themselves deny is disingenuous in controversy; it is atrocious in government. The doctrine of predestination, in the opinion of many people, tends to make those who hold it utterly immoral. And certainly it would seem that a man who believes his eternal destiny to be already irrevocably fixed is likely to indulge his passions without restraint and to neglect his religious duties. If he is an heir of wrath, his exertions must be unavailing. If he is preordained to life, they must be superfluous. But would it be wise to punish every man who holds the higher doctrines of Calvinism, as if he had actually committed all those crimes which we know some Antinomians to have committed? Assuredly not. The fact notoriously is that there are many Calvinists as moral in their conduct as any Arminian, and many Arminians as loose as any Calvinist.

It is altogether impossible to reason from the opinions which a man professes to his feelings and his actions; and in fact no person is ever such a fool as to reason thus, except when he wants a pretext for persecuting his neighbours. A Christian is commanded, under the strongest sanctions, to be just in all his dealings. Yet to how many of the twenty-four millions of professing Christians in these islands would any man in his senses lend a thousand pounds without security? A man who should act, for one day, on

the supposition that all the people about him were influenced by the religion which they professed, would find himself ruined before night; and no man ever does act on that supposition in any of the ordinary concerns of life, in borrowing, in lending, in buying, or in selling. But when any of our fellow-creatures are to be oppressed, the case is different. Then we represent those motives which we know to be so feeble for good as omnipotent for evil. Then we lay to the charge of our victims all the vices and follies to which their doctrines, however remotely, seem to tend. We forget that the same weakness, the same laxity, the same disposition to prefer the present to the future, which make men worse than a good religion, make them better than a bad one.

It was in this way that our ancestors reasoned, and that some people in our time still reason, about the Catholics. A Papist believes himself bound to obey the pope. The pope has issued a bull deposing Queen Elizabeth. Therefore every Papist will treat her grace as an usurper. Therefore every Papist is a traitor. Therefore every Papist ought to be hanged, drawn, and quartered. To this logic we owe some of the most hateful laws that ever disgraced our history. Surely the answer lies on the surface. The Church of Rome may have commanded these men to treat the queen as an usurper. But she has commanded them to do many other things which they have never done. She enjoins her priests to observe strict purity. You are always taunting them with their licentiousness. She commands all her followers to fast often, to be charitable to the poor, to take no interest for money, to fight no duels, to see no plays. Do they obey these injunctions? If it be the fact that very few of them strictly observe her precepts, when her precepts are opposed to their passions and interests, may not loyalty, may not humanity, may not the love of ease, may not the fear of death, be sufficient to prevent them from executing those wicked orders which the Church of Rome has issued against the sovereign of England? When we know that many of these people do not care enough for their religion to go without beef on a Friday for it, why should we think that they will run the risk of being racked and hanged for it?

People are now reasoning about the Jews as our fathers reasoned about the Papists. The law which is inscribed on the walls of the synagogues prohibits covetousness.^[14] But if we were to say that a Jew mortgagee would not foreclose because God had commanded him not to covet his

neighbour's house, everybody would think us out of our wits. Yet it passes for an argument to say that a Jew will take no interest in the prosperity of the country in which he lives, that he will not care how bad its laws and police may be, how heavily it may be taxed, how often it may be conquered and given up to spoil, because God has promised that, by some unknown means and at some undetermined time, perhaps ten thousand years hence, the Jews shall migrate to Palestine. Is not this the most profound ignorance of human nature? Do we not know that what is remote and indefinite affects men far less than what is near and certain? The argument, too, applies to Christians as strongly as to Jews. The Christian believes as well as the Jew, that at some future period the present order of things will come to an end. Nay, many Christians believe that the Messiah will shortly establish a kingdom on the earth, and reign visibly over all its inhabitants. Whether this doctrine be orthodox or not we shall not here inquire. The number of people who hold it is very much greater than the number of Jews residing in England. Many of those who hold it are distinguished by rank, wealth, and ability. It is preached from pulpits both of the Scottish and of the English Church. Noblemen and Members of Parliament have written in defence of it. Now wherein does this doctrine differ, as far as its political tendency is concerned, from the doctrine of the Jews? If a Jew is unfit to legislate for us because he believes that he or his remote descendants will be removed to Palestine, can we safely open the House of Commons to a fifth-monarchy man, who expects that before this generation shall pass away, all the kingdoms of the earth will be swallowed up in one divine empire?

Does a Jew engage less eagerly than a Christian in any competition which the law leaves open to him? Is he less active and regular in his business than his neighbours? Does he furnish his house meanly, because he is a pilgrim and sojourner in the land? Does the expectation of being restored to the country of his fathers make him insensible to the fluctuations of the stock-exchange? Does he, in arranging his private affairs, ever take into the account the chance of his migrating to Palestine? If not, why are we to suppose that feelings which never influence his dealings as a merchant, or his dispositions as a testator, will acquire a boundless influence over him as soon as he becomes a magistrate or a legislator?

There is another argument which we would not willingly treat with levity, and which yet we scarcely know how to treat seriously. Scripture, it is said,

is full of terrible denunciations against the Jews. It is foretold that they are to be wanderers. Is it then right to give them a home? It is foretold that they are to be oppressed. Can we with propriety suffer them to be rulers? To admit them to the rights of citizens is manifestly to insult the Divine oracles.

We allow that to falsify a prophecy inspired by Divine Wisdom would be a most atrocious crime. It is, therefore, a happy circumstance for our frail species, that it is a crime which no man can possibly commit. If we admit the Jews to seats in Parliament, we shall, by so doing, prove that the prophecies in question, whatever they may mean, do not mean that the Jews shall be excluded from Parliament.

In fact it is already clear that the prophecies do not bear the meaning put upon them by the respectable persons whom we are now answering. In France and in the United States the Jews are already admitted to all the rights of citizens. A prophecy, therefore, which should mean that the Jews would never, during the course of their wanderings, be admitted to all the rights of citizens in the places of their sojourn, would be a false prophecy. This, therefore, is not the meaning of the prophecies of Scripture.

But we protest altogether against the practice of confounding prophecy with precept, of setting up predictions which are often obscure against a morality which is always clear. If actions are to be considered as just and good merely because they have been predicted, what action was ever more laudable than that crime which our bigots are now, at the end of eighteen centuries, urging us to avenge on the Jews, that crime which made the earth shake and blotted out the sun from heaven? The same reasoning which is now employed to vindicate the disabilities imposed on our Hebrew countrymen will equally vindicate the kiss of Judas and the judgment of Pilate. “The son of man goeth, as it is written of him; but woe to that man by whom the son of man is betrayed.”^[15] And woe to those who, in any age or in any country, disobey his benevolent commands under pretence of accomplishing his predictions. If this argument justifies the laws now existing against the Jews, it justifies equally all the cruelties which have ever been committed against them, the sweeping edicts of banishment and confiscation, the dungeon, the rack, and the slow fire. How can we excuse ourselves for leaving property to people who are to “serve their enemies in hunger, and in thirst, and in nakedness, and in want of all things”; for giving

protection to the persons of those who are to “fear day and night, and to have none assurance of their life”; for not seizing on the children of a race whose “sons and daughters are to be given unto another people”?^[16]

We have not so learned the doctrines of him who commanded us to love our neighbour as ourselves, and who, when he was called upon to explain what he meant by a neighbour, selected as an example a heretic and an alien.^[17] Last year, we remember, it was represented by a pious writer in the *John Bull* newspaper,^[18] and by some other equally fervid Christians, as a monstrous indecency, that the measure for the relief of the Jews should be brought forward in Passion week. One of these humourists ironically recommended that it should be read a second time on Good Friday. We should have had no objection; nor do we believe that the day could be commemorated in a more worthy manner. We know of no day fitter for terminating long hostilities, and repairing cruel wrongs, than the day on which the religion of mercy was founded. We know of no day fitter for blotting out from the statute-book the last traces of intolerance than the day on which the spirit of intolerance produced the foulest of all judicial murders, the day on which the list of the victims of intolerance, that noble list wherein Socrates and More are enrolled, was glorified by a yet greater and holier name.

A SPEECH

DELIVERED IN A COMMITTEE OF THE WHOLE HOUSE OF COMMONS

On the 17th of April 1833.

On the seventeenth of April, 1833, the House of Commons resolved itself into a Committee to consider of the civil disabilities of the Jews. Mr. Warburton took the chair. Mr. Robert Grant moved the following resolution:—

“That it is the opinion of this Committee that it is expedient to remove all civil disabilities at present existing with respect to His Majesty’s subjects professing the Jewish religion, with the like exceptions as are provided with respect to His Majesty’s subjects professing the Roman Catholic religion.”

The resolution passed without a division, after a warm debate, in the course of which the following Speech was made:—

MR. WARBURTON,—I recollect, and my honourable friend the Member for the University of Oxford^[19] will recollect, that when this subject was discussed three years ago, it was remarked, by one whom we both loved and whom we both regret, that the strength of the case of the Jews was a serious inconvenience to their advocate, for that it was hardly possible to make a speech for them without wearying the audience by repeating truths which were universally admitted. If Sir James Mackintosh felt this difficulty when the question was first brought forward in this House, I may well despair of being able now to offer any arguments which have a pretence to novelty.^[20]

My honourable friend, the Member for the University of Oxford, began his speech by declaring that he had no intention of calling in question the principles of religious liberty. He utterly disclaims persecution, that is to say, persecution as defined by himself. It would, in his opinion, be persecution to hang a Jew, or to flay him, or to draw his teeth, or to imprison him, or to fine him; for every man who conducts himself peaceably has a right to his life and his limbs, to his personal liberty and his property. But it is not persecution, says my honourable friend, to exclude

any individual or any class from office; for nobody has a right to office: in every country official appointments must be subject to such regulations as the supreme authority may choose to make; nor can any such regulations be reasonably complained of by any member of the society as unjust. He who obtains an office obtains it, not as matter of right, but as matter of favour. He who does not obtain an office is not wronged; he is only in that situation in which the vast majority of every community must necessarily be. There are in the United Kingdom five and twenty million Christians without places; and, if they do not complain, why should five and twenty thousand Jews complain of being in the same case? In this way my honourable friend has convinced himself that, as it would be most absurd in him and me to say that we are wronged because we are not Secretaries of State, so it is most absurd in the Jews to say that they are wronged because they are, as a people, excluded from public employment.

Now, surely my honourable friend cannot have considered to what conclusions his reasoning leads. Those conclusions are so monstrous that he would, I am certain, shrink from them. Does he really mean that it would not be wrong in the legislature to enact that no man should be a judge unless he weighed twelve stone, or that no man should sit in Parliament unless he were six feet high? We are about to bring in a bill for the government of India. Suppose that we were to insert in that bill a clause providing that no graduate of the University of Oxford should be Governor-General or Governor of any Presidency, would not my honourable friend cry out against such a clause as most unjust to the learned body which he represents? And would he think himself sufficiently answered by being told, in his own words, that the appointment to office is a mere matter of favour, and that to exclude an individual or a class from office is no injury? Surely, on consideration, he must admit that official appointments ought not to be subject to regulations purely arbitrary, to regulations for which no reason can be given but mere caprice, and that those who would exclude any class from public employment are bound to show some special reason for the exclusion.

My honourable friend has appealed to us as Christians. Let me then ask him how he understands that great commandment which comprises the law and the prophets. Can we be said to do unto others as we would that they should do unto us if we wantonly inflict on them even the smallest pain? As

Christians, surely we are bound to consider, first, whether, by excluding the Jews from all public trust, we give them pain; and, secondly, whether it be necessary to give them that pain in order to avert some greater evil. That by excluding them from public trust we inflict pain on them my honourable friend will not dispute. As a Christian, therefore, he is bound to relieve them from that pain, unless he can show, what I am sure he has not yet shown, that it is necessary to the general good that they should continue to suffer.

But where, he says, are you to stop, if once you admit into the House of Commons people who deny the authority of the Gospels? Will you let in a Mussulman? Will you let in a Parsee? Will you let in a Hindoo, who worships a lump of stone with seven heads? I will answer my honourable friend's question by another. Where does he mean to stop? Is he ready to roast unbelievers at slow fires? If not, let him tell us why: and I will engage to prove that his reason is just as decisive against the intolerance which he thinks a duty, as against the intolerance which he thinks a crime. Once admit that we are bound to inflict pain on a man because he is not of our religion; and where are you to stop? Why stop at the point fixed by my honourable friend rather than at the point fixed by the honourable Member for Oldham,^[21] who would make the Jews incapable of holding land? And why stop at the point fixed by the honourable Member for Oldham rather than at the point which would have been fixed by a Spanish Inquisitor of the sixteenth century? When once you enter on a course of persecution, I defy you to find any reason for making a halt till you have reached the extreme point. When my honourable friend tells us that he will allow the Jews to possess property to any amount, but that he will not allow them to possess the smallest political power, he holds contradictory language. Property is power. The honourable Member for Oldham reasons better than my honourable friend. The honourable member for Oldham sees very clearly that it is impossible to deprive a man of political power if you suffer him to be the proprietor of half a county, and therefore very consistently proposes to confiscate the landed estates of the Jews. But even the honourable Member for Oldham does not go far enough. He has not proposed to confiscate the personal property of the Jews. Yet it is perfectly certain that any Jew who has a million may easily make himself very important in the state. By such steps we pass from official power to landed property, and from landed property to personal property, and from property to liberty, and from liberty to life. In truth, those persecutors who use the

rack and the stake have much to say for themselves. They are convinced that their end is good; and it must be admitted that they employ means which are not unlikely to attain the end. Religious dissent has repeatedly been put down by sanguinary persecution. In that way the Albigenses were put down.^[22] In that way Protestantism was suppressed in Spain and Italy, so that it has never since reared its head. But I defy anybody to produce an instance in which disabilities such as we are now considering have produced any other effect than that of making the sufferers angry and obstinate. My honourable friend should either persecute to some purpose, or not persecute at all. He dislikes the word persecution, I know. He will not admit that the Jews are persecuted. And yet I am confident that he would rather be sent to the King's Bench Prison for three months, or be fined a hundred pounds, than be subject to the disabilities under which the Jews lie. How can he then say that to impose such disabilities is not persecution, and that to fine and imprison is persecution? All his reasoning consists in drawing arbitrary lines. What he does not wish to inflict he calls persecution. What he does wish to inflict he will not call persecution. What he takes from the Jews he calls political power. What he is too good-natured to take from the Jews he will not call political power. The Jew must not sit in Parliament; but he may be the proprietor of all the ten-pound houses in a borough.^[23] He may have more fifty-pound tenants than any peer in the kingdom. He may give the voters treats to please their palates, and hire bands of gipsies to break their heads, as if he were a Christian and a Marquess. All the rest of the system is of a piece. The Jew may be a juryman, but not a judge. He may decide issues of fact, but not issues of law. He may give a hundred thousand pounds damages; but he may not in the most trivial case grant a new trial. He may rule the money-market: he may influence the exchanges: he may be summoned to congresses of Emperors and Kings. Great potentates, instead of negotiating a loan with him by tying him in a chair and pulling out his grinders, may treat with him as with a great potentate, and may postpone the declaring of war or the signing of a treaty till they have conferred with him. All this is as it should be: but he must not be a Privy Councillor. He must not be called Right Honourable, for that is political power. And who is it that we are trying to cheat in this way? Even Omniscience. Yes, Sir; we have been gravely told that the Jews are under the divine displeasure, and that if we give them political power, God will visit us in judgment. Do we then think that God

cannot distinguish between substance and form? Does not He know that, while we withhold from the Jews the semblance and name of political power, we suffer them to possess the substance? The plain truth is that my honourable friend is drawn in one direction by his opinions, and in a directly opposite direction by his excellent heart. He halts between two opinions. He tries to make a compromise between principles which admit of no compromise. He goes a certain way in intolerance. Then he stops, without being able to give a reason for stopping. But I know the reason. It is his humanity. Those who formerly dragged the Jew at a horse's tail, and singed his beard with blazing furze-bushes, were much worse men than my honourable friend; but they were more consistent than he.

It has been said that it would be monstrous to see a Jew judge try a man for blasphemy.^[24] In my opinion it is monstrous to see any judge try a man for blasphemy under the present law. But, if the law on that subject were in a sound state, I do not see why a conscientious Jew might not try a blasphemer. Every man, I think, ought to be at liberty to discuss the evidences of religion; but no man ought to be at liberty to force on the unwilling ears and eyes of others sounds and sights which must cause annoyance and irritation. The distinction is clear. I think it wrong to punish a man for selling Paine's "Age of Reason" in a back-shop to those who choose to buy, or for delivering a Deistical lecture in a private room to those who choose to listen. But if a man exhibits at a window in the Strand a hideous caricature of that which is an object of awe and adoration to nine hundred and ninety-nine out of every thousand of the people who pass up and down that great thoroughfare; if a man in a place of public resort applies opprobrious epithets to names held in reverence by all Christians; such a man ought, in my opinion, to be severely punished, not for differing from us in opinion, but for committing a nuisance which gives us pain and disgust. He is no more entitled to outrage our feelings by obtruding his impiety on us, and to say that he is exercising his right of discussion, than to establish a yard for butchering horses close to our houses, and to say that he is exercising his right of property, or to run naked up and down the public streets, and to say that he is exercising his right of locomotion. He has a right of discussion, no doubt, as he has a right of property and a right of locomotion. But he must use all his rights so as not to infringe the rights of others.

These, Sir, are the principles on which I would frame the law of blasphemy; and if the law were so framed, I am at a loss to understand why a Jew might not enforce it as well as a Christian. I am not a Roman Catholic; but if I were a judge at Malta, I should have no scruple about punishing a bigoted Protestant who should burn the Pope in effigy before the eyes of thousands of Roman Catholics. I am not a Mussulman; but if I were a judge in India, I should have no scruple about punishing a Christian who should pollute a mosque. Why, then, should I doubt that a Jew, raised by his ability, learning, and integrity to the judicial bench, would deal properly with any person who, in a Christian country, should insult the Christian religion?

But, says my honourable friend, it has been prophesied that the Jews are to be wanderers on the face of the earth, and that they are not to mix on terms of equality with the people of the countries in which they sojourn. Now, Sir, I am confident that I can demonstrate that this is not the sense of any prophecy which is part of Holy Writ. For it is an undoubted fact that, in the United States of America, Jewish citizens do possess all the privileges possessed by Christian citizens. Therefore, if the prophecies mean that the Jews never shall, during their wanderings, be admitted by other nations to equal participation of political rights, the prophecies are false. But the prophecies are certainly not false. Therefore their meaning cannot be that which is attributed to them by my honourable friend.

Another objection which has been made to the motion is that the Jews look forward to the coming of a great deliverer, to their return to Palestine, to the rebuilding of their Temple, to the revival of their ancient worship, and that therefore they will always consider England, not their country, but merely as their place of exile. But, surely, Sir, it would be the grossest ignorance of human nature to imagine that the anticipation of an event which is to happen at some time altogether indefinite, of an event which has been vainly expected during many centuries, of an event which even those who confidently expect that it will happen do not confidently expect that they or their children or their grandchildren will see, can ever occupy the minds of men to such a degree as to make them regardless of what is near and present and certain. Indeed Christians, as well as Jews, believe that the existing order of things will come to an end. Many Christians believe that Jesus will visibly reign on earth during a thousand years. Expositors of

prophecy have gone so far as to fix the year when the Millennial period is to commence. The prevailing opinion is, I think, in favour of the year 1866; but, according to some commentators, the time is close at hand. Are we to exclude all millenarians from Parliament and office, on the ground that they are impatiently looking forward to the miraculous monarchy which is to supersede the present dynasty and the present constitution of England, and that therefore they cannot be heartily loyal to King William?

In one important point, Sir, my honourable friend, the Member for the University of Oxford, must acknowledge that the Jewish religion is of all erroneous religions the least mischievous. There is not the slightest chance that the Jewish religion will spread. The Jew does not wish to make proselytes. He may be said to reject them.^[25] He thinks it almost culpable in one who does not belong to his race to presume to belong to his religion. It is therefore not strange that a conversion from Christianity to Judaism should be a rarer occurrence than a total eclipse of the sun. There was one distinguished convert in the last century, Lord George Gordon; and the history of his conversion deserves to be remembered.^[26] For if ever there was a proselyte of whom a proselytising sect would have been proud, it was Lord George; not only because he was a man of high birth and rank; not only because he had been a member of the legislature; but also because he had been distinguished by the intolerance, nay, the ferocity, of his zeal for his own form of Christianity. But was he allured into the synagogue? Was he even welcomed to it? No, Sir; he was coldly and reluctantly permitted to share the reproach and suffering of the chosen people; but he was sternly shut out from their privileges. He underwent the painful rite which their law enjoins. But when, on his death-bed, he begged hard to be buried among them according to their ceremonial, he was told that his request could not be granted. I understand that cry of “Hear.” It reminds me that one of the arguments against this motion is that the Jews are an unsocial people, that they draw close to each other, and stand aloof from strangers. Really, Sir, it is amusing to compare the manner in which the question of Catholic emancipation was argued formerly by some gentlemen with the manner in which the question of Jew emancipation is argued by the same gentlemen now. When the question was about Catholic emancipation, the cry was, “See how restless, how versatile, how encroaching, how insinuating, is the spirit of the Church of Rome. See how her priests compass earth and sea to

make one proselyte, how indefatigably they toil, how attentively they study the weak and strong parts of every character, how skilfully they employ literature, arts, sciences, as engines for the propagation of their faith. You find them in every region and under every disguise, collating manuscripts in the Bodleian, fixing telescopes in the observatory of Pekin, teaching the use of the plough and the spinning wheel to the savages of Paraguay. Will you give power to the members of a Church so busy, so aggressive, so insatiable?" Well, now the question is about people who never try to seduce any stranger to join them, and who do not wish anybody to be of their faith who is not also of their blood. And now you exclaim, "Will you give power to the members of a sect which remains sullenly apart from other sects, which does not invite, nay, which hardly even admits neophytes?" The truth is, that bigotry will never want a pretence. Whatever the sect be which it is proposed to tolerate, the peculiarities of that sect will, for the time, be pronounced by intolerant men to be the most odious and dangerous that can be conceived. As to the Jews, that they are unsocial as respects religion is true; and so much the better: for, surely, as Christians, we cannot wish that they should bestir themselves to pervert us from our own faith. But that the Jews would be unsocial members of the civil community, if the civil community did its duty by them, has never been proved. My right honourable friend who made the motion which we are discussing has produced a great body of evidence to show that they have been grossly misrepresented;^[27] and that evidence has not been refuted by my honourable friend the Member for the University of Oxford. But what if it were true that the Jews are unsocial? What if it were true that they do not regard England as their country? Would not the treatment which they have undergone explain and excuse their antipathy to the society in which they live? Has not similar antipathy often been felt by persecuted Christians to the society which persecuted them? While the bloody code of Elizabeth was enforced against the English Roman Catholics, what was the patriotism of Roman Catholics? Oliver Cromwell said that in his time they were Espaniolised. At a later period it might have been said that they were Gallicised. It was the same with the Calvinists. What more deadly enemies had France in the days of Louis the Fourteenth than the persecuted Huguenots? But would any rational man infer from these facts that either the Roman Catholic as such, or the Calvinist as such, is incapable of loving the land of his birth? If England were now invaded by Roman Catholics,

how many English Roman Catholics would go over to the invader? If France were now attacked by a Protestant enemy, how many French Protestants would lend him help? Why not try what effect would be produced on the Jews by that tolerant policy which has made the English Roman Catholic a good Englishman and the French Calvinist a good Frenchman?^[28]

Another charge has been brought against the Jews, not by my honourable friend the Member for the University of Oxford—he has too much learning and too much good feeling to make such a charge—but by the honourable Member for Oldham, who has, I am sorry to see, quitted his place. The honourable Member for Oldham tells us that the Jews are naturally a mean race, a sordid race, a money-getting race; that they are averse to all honourable callings; that they neither sow nor reap; that they have neither flocks nor herds; that usury is the only pursuit for which they are fit; that they are destitute of all elevated and amiable sentiments. Such, Sir, has in every age been the reasoning of bigots. They never fail to plead in justification of persecution the vices which persecution has engendered. England has been to the Jews less than half a country; and we revile them because they do not feel for England more than a half patriotism. We treat them as slaves, and wonder that they do not regard us as brethren. We drive them to mean occupations, and then reproach them for not embracing honourable professions. We long forbade them to possess land; and we complain that they chiefly occupy themselves in trade. We shut them out from all the paths of ambition; and then we despise them for taking refuge in avarice. During many ages we have, in all our dealings with them, abused our immense superiority of force; and then we are disgusted because they have recourse to that cunning which is the natural and universal defence of the weak against the violence of the strong. But were they always a mere money-changing, money-getting, money-hoarding race? Nobody knows better than my honourable friend the Member for the University of Oxford that there is nothing in their national character which unfits them for the highest duties of citizens. He knows that, in the infancy of civilisation, when our island was as savage as New Guinea, when letters and arts were still unknown to Athens, when scarcely a thatched hut stood on what was afterwards the site of Rome, this contemned people had their fenced cities and cedar palaces, their splendid Temple, their fleets of merchant ships, their schools of sacred learning, their great statesmen and

soldiers, their natural philosophers, their historians and their poets. What nation ever contended more manfully against overwhelming odds for its independence and religion? What nation ever, in its last agonies, gave such signal proofs of what may be accomplished by a brave despair? And if, in the course of many centuries, the oppressed descendants of warriors and sages have degenerated from the qualities of their fathers, if, while excluded from the blessings of law, and bowed down under the yoke of slavery, they have contracted some of the vices of outlaws and of slaves, shall we consider this as matter of reproach to them? Shall we not rather consider it as matter of shame and remorse to ourselves? Let us do justice to them. Let us open to them the door of the House of Commons. Let us open to them every career in which ability and energy can be displayed. Till we have done this, let us not presume to say that there is no genius among the countrymen of Isaiah, no heroism among the descendants of the Maccabees.

Sir, in supporting the motion of my honourable friend, I am, I firmly believe, supporting the honour and the interests of the Christian religion. I should think that I insulted that religion if I said that it cannot stand unaided by intolerant laws. Without such laws it was established, and without such laws it may be maintained. It triumphed over the superstitions of the most refined and of the most savage nations, over the graceful mythology of Greece and the bloody idolatry of the Northern forests. It prevailed over the power and policy of the Roman empire. It tamed the barbarians by whom that empire was overthrown. But all these victories were gained not by the help of intolerance, but in spite of the opposition of intolerance. The whole history of Christianity proves that she has little indeed to fear from persecution as a foe, but much to fear from persecution as an ally. May she long continue to bless our country with her benignant influence, strong in her sublime philosophy, strong in her spotless morality, strong in those internal and external evidences to which the most powerful and comprehensive of human intellects have yielded assent, the last solace of those who have outlived every earthly hope, the last restraint of those who are raised above every earthly fear! But let not us, mistaking her character and her interests, fight the battle of truth with the weapons of error, and endeavour to support by oppression that religion which first taught the human race the great lesson of universal charity.

Ever yours most truly
P. B. Macaulay

NOTES

[1] The full title of the publication which forms the peg for Macaulay's essay is *Statement of the Civil Disabilities and Privations affecting natural born Subjects of His Majesty professing the Jewish Religion, commonly called Jews*. It was printed in 1829 by G. Taylor, Printer, 7 Little James Street. In the article in the *Westminster Review*, April 1829, occasioned by this same pamphlet, the address of the printer, George Taylor, is given as *Lamb's Conduit Passage, Red Lion Square*. The *Statement* must have appeared in two forms. Macaulay describes it as octavo, but the pages of the copy which Mr. Israel Solomons possesses measure 12½ by 7¾ inches. The margins in this copy have been cut for binding. It was meant to *fold* in four, as is shown by the manner in which the title is repeated on the fourth side. The title as there printed is *exactly that cited by Macaulay*. Probably the document was originally a Petition to the House of Commons.

The *Statement* is anonymous, but bears the clear hallmark of Francis Henry Goldsmid's style. Cf. D. W. Marks and A. Löwy, *Memoir of Sir Francis Henry Goldsmid*, 1879, p. 23 [second edition, 1882, p. 27]. The author opens with the general assertion that no man ought to be deprived of civil or political right because of his religious opinions, "unless it can be shewn that, from the removal of their disabilities, injury is likely to result to the community at large." The *Statement* goes on to argue that such removal would not injure the religion or threaten the government of England, for, on the one hand, Jews do not proselytise, and, on the other, they are noted for their "proverbial loyalty." The experience of the happy effect of emancipation in France, America, and the Netherlands is next appealed to. This leads up to a short survey of the history of the Jews in England before the expulsion in 1290, and after the return in the time of Cromwell, and an able argument as to their legal status—including their right to hold land—follows. The whole concludes with an appeal for the "Omission in the Oath of Abjuration and Dissenters' Declaration, when respectively taken, or made and subscribed, by persons professing the Jewish religion, of words obviously inconsistent with such profession." It is altogether a moderate and able presentation of the case for the Jews, and fairly deserved the prominence given to it by Macaulay.

[2] Sir Robert Grant (1779-1838) was born in Bengal, and, after a distinguished career at Cambridge, entered Parliament in 1818. In 1830 his first Bill was rejected; but a better fate rewarded his effort of 1833. Soon afterwards he went to India as Governor of Bombay. Grant was the author of some famous sacred poems, one of the best and most popular of which was his translation of Psalm civ., "O Worship the King."

[3] There had been a change of Government. Parliament was dissolved on July 24, 1830, and in the new parliament the Duke of Wellington's ministry fell, to be succeeded by the Grey administration.

[4] See comments on this passage in the Introduction.

[5] Professor F. C. Montague remarks that “probably Perceval, Goulburn, and Vansittart are more particularly meant.” These were Chancellors between 1810 and 1830.

[6] Gatton (Surrey) and Old Sarum (Wilts) were “pocket boroughs without inhabitants,” and, like the corrupt borough of Penryn (Cornwall), were disfranchised by the Reform Act. Macaulay was far from implying that Jews actually did own any corrupt boroughs. His argument is based on the fact that nothing in the then state of the law could prevent such ownership.

[7] “Henry Pelham Francis Pelham Clinton, fourth Duke of Newcastle, 1785-1851, a high Tory, ejected some of his tenants at Newark for having voted on the Whig side in the general election of 1830” (Professor Montague).

[8] This refers to Daniel O’Connell—who, it may be remembered, was a consistent friend of the Jewish claims.

[9] William Laud (1573-1645), Archbishop of Canterbury from 1633, was one of the principal advisers of Charles I. in his repression of the Puritans and the enforcement of episcopacy upon Scotland. He was attainted in January 1645, and was executed on Tower Hill.

[10] In the *Edinburgh Review* these sentences follow: “It is to put the effect before the cause. It is to vindicate oppression by pointing to the depravation which oppression has caused.” Macaulay felt, no doubt, that the word “depravation” was unjust, and conveyed an unintended stigma.

[11] Gaspard de Coligni was a Huguenot victim of the massacre of St. Bartholomew, in 1572.

Sir Henry Vane was a leader in the Opposition against Charles I., and was executed in 1662.

[12] The answer given by the lay barons at the Parliament of Merton in 1236 to the proposal of the prelates to make the English law of legitimacy correspond with that of other countries. Sir James H. Ramsay, *The Dawn of the Constitution*, pp. 77, 78, following the text of the Statutes of the Realm, reads *mutare* in the active, instead of *mutari* in the passive.

[13] The argument is lengthily and moderately stated in a *Times* leader for May 3, 1830.

[14] This passage confirms what is said in the Introduction as to Macaulay’s personal familiarity with synagogue usages.

[15] Matthew xxvi. 24.

[16] Deuteronomy xxviii. 48, 66, 32.

[17] Luke x. 29. “Love thy neighbour as thyself” is from Leviticus xix. 18.

[18] In its issue of April 3, 1830, the newspaper *John Bull* (which bore on its title-page the legend, “For God, the King, and the People”) published a violent attack on Mr. Grant’s Bill. The article took the form of a sarcastic plea for the emancipation of the gipsies. There was a further attack on April 25, and on May 23 the same paper, while rejoicing at the rejection of Mr. Grant’s “romantic and

un-Christian Bill,” expressed its dissatisfaction with the speeches of the opponents of Jewish emancipation. They were altogether too conciliatory and tolerant to please *John Bull*.

[19] Sir Robert Inglis (1786-1855) entered Parliament in 1824. He opposed the various Catholic Relief Bills and the repeal of the Test and Corporation Acts. Sir Robert Peel had supported the Catholic claims, and Inglis thereupon successfully opposed him (1829) as candidate for the University of Oxford. Inglis continued to represent the University until his withdrawal from parliamentary life. He persistently opposed the Jewish emancipation. “Inglis was an old-fashioned Tory, a strong Churchman, with many prejudices and no great ability” (*Dictionary of National Biography*).

[20] Sir James Mackintosh (1765-1832) supported Grant’s first resolution in 1830; in the interim he had died. Mackintosh, who entered the House in 1813, enjoyed much reputation as a philosopher.

[21] The Member for Oldham was the noted William Cobbett (1762-1835), who, after an extraordinary career in England and America, entered the first Reformed Parliament. Cobbett was very violent in his opposition to Jewish liberties. See note 24.

[22] The Albigenses, who took their name from one of their strongholds, the town of Albi on the Tarn, were an anti-sacerdotal sect in the South of France during the twelfth and thirteenth centuries, infected with Manichæan heresy. They suffered the most horrible cruelties in the crusade carried on against them from 1209 to 1218 under the command of Simon de Montfort, the father of the Simon de Montfort so well known in English history. See T. F. Tout, “The Empire and the Papacy,” pp. 216, 401.

[23] See note 6.

[24] On March 1, 1833, Mr. Hill presented a petition by Unitarians in favour of the “removal of all Religious Disqualifications still existing, and especially for the removal of the Disabilities affecting the Jews.” It was on this occasion that Cobbett raised the objection to which Macaulay’s argument is the reply. The reference to Paine’s “Age of Reason” is also a covert hit at Cobbett, who reprinted Paine’s work.

[25] Macaulay here overstates the case. The synagogue has at various times been reluctant to receive and unwilling to seek proselytes. But it does not reject them.

[26] Lord George Gordon (1751-1793), the third son of Cosmo George, Duke of Gordon, was charged with high treason for having in 1780 headed terrible riots in London directed against the removal of certain Roman Catholic disabilities. He was acquitted on the ground that he had no treasonable intentions. He afterwards embraced the Jewish faith, and was received into the covenant of Abraham in Birmingham, but without the sanction of the Jewish ecclesiastical authorities in London. A vivid description of the “No Popery” riots of 1780 will be found in Dickens’ “Barnaby Rudge,” which also contains a reference to Lord George’s change of religion.

[27] In the report of Grant’s speech in the *Times* of April 18, 1833, occurs this passage:—

“Now with respect to the supposed anti-social principles of the Jews, the most sacred of their books had told them to ‘Seek the peace of the city whither I have caused you to be carried away captives, and pray unto the Lord for it; for in the peace thereof shall ye have peace’ [Jeremiah xxix. 7]. This principle was fully recognised by the Jews under Napoleon, who asked whether they held themselves bound, as citizens of the State in which they resided, by the laws and customs of that State? The Sanhedrin replied that every Jew, regarded as a citizen by the State, must obey the laws of the country which protected them and conform to the regulations of the civil code; in short, that Israelites were bound to consider such countries as their own, and serve and defend them to the utmost. In a catechism of the elements of the Jewish faith, intended for the use of Hebrew youths, it was stated that the Messiah not having come, the king under whose protection they lived must be considered as a King of Israel, and that the country in which they enjoyed such protection was to be looked upon in the same light as the land of their forefathers.”

Grant followed this up by a masterly survey of the relations of Jews to various States in the past and present, and cited evidence of the patriotism and good citizenship of Jews wherever they had been permitted an opportunity of displaying those qualities.

[28] In Hansard’s report (col. 236) Macaulay finished the paragraph with the words: “Why not try the same experiment which has been tried in France and Prussia, and which was now trying in the United States of America?” In the same debate (col. 342), in the report of Mr. Joseph Hume’s speech, occurs the passage: “He had a letter in his hand, though he would not trouble the House by reading it, from Mr. Quincy Adams, the late President of the United States, stating that there were no better citizens than the Jews, and expressing the hope that ere long the whole of Europe would see the justice and wisdom of freely conceding to them the fullest political privileges.”

FOREIGN EDITIONS

[The numbers in square brackets at the end of the entries indicate the press-marks of the copies in the British Museum.]

(a) MACAULAY’S ESSAY

(1) [French]. *Essais politiques et philosophiques par Lord Macaulay, Traduits par M. Guillaume Guizot.* Paris, 1862. Pp. 380-398. [12273 k 3.]

(2) [Dutch]. *Historische en letterkundige Schetsen door Lord Macaulay. In het Hollandsch overgebracht door Dr. A. Pierson.* Haarlem, 1865. I. 105-120. [12272 aa 23.]

(3) [Italian]. *Saggi biografici e critici di Tommaso Babington Macaulay. Versione dall’ Inglese con note di Cesare Rovighi.* Torino, 1859-1866. V.

288-302. [12273 aa 3.]

(4) [English text, with Introduction and Notes in German]. *Civil Disabilities of the Jews. Eine 1831 veröffentlichte Abhandlung von Thomas Babington Macaulay. Herausgegeben und mit Anmerkungen versehen von Dr. F. Fischer.* Berlin, 1882. [4033 f 32 (10).]

(5) [Roumanian]. The son of Prince John Ghica (for some time Roumanian minister at the Court of St. James'), who was educated in England, translated Macaulay's Essay on the "Civil Disabilities of the Jews" into Roumanian. The translation appeared as a small pamphlet in Bucharest. Political exigencies and the rise of anti-Jewish feeling in Roumania demanded the suppression of the translation, to avoid awkward questions and to remove a possible bar to the young man's career. The pamphlet has in consequence almost completely disappeared. A few copies, however, have been saved, and one of them is in the library of the Rev. Dr. M. Gaster.

(b) MACAULAY'S SPEECH

(1) A German translation of Macaulay's Speech on "Jewish Disabilities" was published in 1881, in reply to the anti-Semitic campaign of Stöcker and Henrici. The full title is Macaulay's *Rede für die Emancipation der Juden gehalten im Englischen Unterhaus, am 17 April 1833. Übersetzt von A. E.* Frankfurt a. Main, 1881. [4033 f 31 (12).]

(2) A Spanish translation will be found on pp. 109-122 of *Discursos Parlamentarios de Lord Macaulay, Traducidos del Inglés por Daniel López.* Madrid, 1885. [8139 aa 66.]

*** END OF THE PROJECT GUTENBERG EBOOK ESSAY AND
SPEECH ON JEWISH DISABILITIES ***

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